

Susobhana Kumari vs Prathapan on 7 December, 2009

Author: Pius C.Kuriakose

Bench: Pius C.Kuriakose

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE PIUS C.KURIAKOSE
&
THE HONOURABLE MR. JUSTICE P.D.RAJAN

WEDNESDAY, THE 13TH DAY OF MARCH 2013/22ND PHALGUNA 1934

Mat.Appeal.No. 672 of 2010 ()

AGAINST THE COMMON JUDGMENT IN OP NO.155/2006 of FAMILY COURT,
NEDUMANGAD DATED 07-12-2009

APPELLANT(S)/RESPONDENT:

SUSOBHANA KUMARI, D/O.V.K.SUKUMARAN,
AGED 50 YEARS, AMBIKA BHAVAN, KADAKKAL P.O.
PIN - 691 536, KADAKKAL,
THIRUVANANTHAPURAM DISTRICT.

BY ADV. SRI.J.JAYAKUMAR

RESPONDENT(S)/PETITIONER:

PRATHAPAN, S/O. GOPALAN, AGED 60 YEARS,
VALLUTHOTTATHIL VEEDU, VALAVUPACHA, CHITHARA P.O.
AND NOW RESIDING AT G.S.LAND, PULLAYIL, PULLAYIL P.O.
KODUVAZHANNOR VILLAGE, CHIRAYINKEEZHU TALUK
THIRUVANANTHAPURAM DISTRICT - 695601.

BY ADV. SRI.A.R.DILEEP

THIS MATRIMONIAL APPEAL HAVING COME UP FOR ADMISSION ON
13-03-2013, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

Mat.Appeal.No. 672 of 2010 ()

APPENDIX

PETITIONER' (S) ANNEXURES: NIL

RESPONDENT' (S) ANNEXURES:

ANNEXURE-I COPY OF CERTIFICATE OF MARRIAGE DATED 12.09.2012.

//TRUE COPY//

PA TO JUDGE

BJA

PIUS C. KURIAKOSE
&
P. D. RAJAN, JJ.

Mat. Appeal No. 672 of 2010

Dated this the 13th day of March, 2013

J U D G M E N T

Pius C. Kuriakose, J.

On behalf of the learned counsel for the appellant, a request for adjournment is sought. But, Sri.A.R.Dileep, the learned counsel for the respondent, points out that this appeal is liable to be rejected. He drew our attention to Section 15 of the Hindu Marriage Act, which reads as follows;

"15. Divorced persons when may marry again. - When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again.

2. Sri.Dileep Submitted that the present appeal against the decree of divorce was not filed on time. It was delayed by 113 days. Even though the appeal and the application for condonation of delay was filed on ..2..

17.08.2010 and this Court ordered notice on both on 30.08.2010, the appellant did not take any steps for serving notice. Finally, as the respondent had no information whatsoever regarding the pendency of the appeal or the delay petition, he contracted a second marriage on the strength of the impugned decree on 20.08.202 as per Annexure-I produced along with IA No.580/2013. According to the learned counsel for the appellant, the appellant came to know about pendency of the present appeal and IA only when he moved his employer for effecting necessary changes in the nomination regarding pensionary benefits. When the above motion was in progress, the appellant filed an objection before the authority contending that she has preferred the present Mat.Appeal. It was only at that juncture, that the appellant came to the information regarding the present Mat. Appeal and readily, the appellant filed vakalath nama on 26.02.2013. But, long before that, as per Annexure-I, the second marriage had ..3..

been solemnized. According to the learned counsel, in view of the second marriage, which has been validly contracted by the respondent, the present appeal cannot be entertained further.

We find force in the above submissions. We reject the appeal.

Post next week as to be spoken to.

Sd/-

PIUS C. KURIAKOSE, JUDGE.

Sd/-

P. D. RAJAN, JUDGE.

bka/-

//True copy// PA to Judge